

1. License Grant

Licensor grants Licensee a limited, non-exclusive, non-transferable license to use the Licensed Software subject to the terms of this Agreement.

2. Minimum Commitment

Licensee agrees to purchase a minimum annual license volume of 500 user seats.

3. Volume Restriction

Licensee shall not permit more than 500 authorized users to access the Software at any time.

4. Most Favored Nation

Licensor agrees that Licensee shall receive pricing terms no less favorable than those offered to similarly situated customers.

5. Cap on Liability

Licensor's total liability under this Agreement shall not exceed the total fees paid by Licensee during the preceding twelve (12) months.

6. Liquidated Damages

In the event of early termination by Licensee without cause, Licensee shall pay liquidated damages equal to three (3) months of subscription fees.

7. Source Code Escrow

Licensor shall deposit the source code into an escrow account to be released to Licensee upon bankruptcy or cessation of business.

8. Exclusivity

Licensor grants Licensee exclusive distribution rights within the Territory during the Term.

9. Non-Compete

Licensee shall not develop or market competing software products during the Term of this Agreement.

10. Audit Rights

Licensor may audit Licensee's records to verify compliance with licensing restrictions.

11. Confidentiality

Each party shall protect the confidentiality of trade secrets and proprietary information.

12. Assignment

Licensee may not assign this Agreement without Licensor's prior written consent.

13. Insurance

Licensee shall maintain professional liability insurance coverage.

14. Warranty Duration

Licensor warrants that the Software shall perform materially in accordance with documentation for ninety (90) days.

15. Governing Law

This Agreement shall be governed by the laws of the State of New York.